

Ruling

Defendant's Motion for Install Payment and Request for Stay is **denied**.

18. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' COMPLAINT CCP 425.16
FILED BY: JARDINE, WENDY CHAPIN
TENTATIVE RULING:

The Court continues the hearing on this motion to June 10, 2026 at 9:00 a.m.

19. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JARDINE, WENDY CHAPIN
TENTATIVE RULING:

The Court continues the hearing on this motion to June 10, 2026 at 9:00 a.m.

20. 9:00 AM CASE NUMBER: C25-03654
CASE NAME: RACHYLL DEMPSEY VS. FCA US LLC,
HEARING ON DEMURRER TO: ANSWER
FILED BY: DEMPSEY, RACHYLL
TENTATIVE RULING:

Summary

Before the Court is Plaintiff Rachyll Dempsey's ("Plaintiff") Demurrer. The Demurrer relates to Defendant FCA US LLC's ("FCA" or "Defendant") Answer to Plaintiff's Complaint.

Plaintiffs demur to Defendants second through twenty-fifth affirmative defenses on several grounds.

For the following reasons, the Demurrer is **SUSTAINED-IN-PART** and **OVERRULED-IN-PART**.

The Demurrer is **SUSTAINED WITH LEAVE TO AMEND**, as to the second, third, fifth, sixth, seventh, eighth, eleventh, fourteenth, fifteenth, sixteenth, twentieth, twenty-second, twenty-third, and twenty-fourth affirmative defenses.

The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the seventeenth, eighteenth, twenty-first, and twenty-fifth affirmative defenses.

The Demurrer is **OVERRULED** as to the thirteenth and nineteenth affirmative defenses.

The Demurrer is **MOOT** as to the fourth, ninth, tenth, and twelfth affirmative defenses.

I. Legal Standard

A party against whom an answer has been filed may object by demurrer on the following grounds: (a) the answer does not state facts sufficient to constitute a defense, (b) the answer is uncertain, or (c) where the answer pleads a contract and it cannot be ascertained from the answer whether the contract is written or oral. (Code Civ. Proc., § 430.20.) A demurrer may be taken to the entire answer or to any one or more of several defenses in it. (Code Civ. Proc., § 430.50(b).) “A demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) The allegations of the pleading demurred to are regarded as true. (*Ibid.*)

“Unlike the usual general demurrer to a complaint the inquiry is not into the statement of a *cause of action*. Instead it is whether the answer raises a *defense* to the plaintiff’s stated cause of action.” (*Timberidge Enterprises, Inc. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 879-880 (emphasis in original).) The analysis of whether an answer states a defense is governed by the same principles as that of whether a complaint states a cause of action. (*South Shore Land Co., supra*, 226 Cal.App.2d 725, 732.)

The sufficiency of an answer is evaluated with reference to the complaint it purports to answer. (*South Shore Land Co., supra*, 226 Cal.App.2d 725, 733.) A defendant must set forth only the “essential facts” of the affirmative defense, “sufficient to acquaint [plaintiff] with the nature, source and extent” of the defense. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 608.) This is known as the “fair notice” test.

Code of Civil Procedure § 431.30(b) provides that an answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant, and (2) a statement of any new matter constituting a defense. “The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as ‘new matter.’” (*State Farm Mut. Auto. Ins. Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725, internal citations omitted.) Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not ‘new matter,’ but only a traverse.” (*State Farm Mut. Auto. Ins. Co., supra*, 228 Cal.App.3d at 725.) Traverse need not be specifically alleged. (*Ibid.*)

Allegations of new matter in an answer should not be proffered in the form of terse legal conclusions but rather they should be averred as carefully and with as much detail as the facts that constitute the cause of action alleged in the complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384; *Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-813.)

Defendant contends that *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, is not persuasive in the demurrer-to-answer context because it arises in the summary judgment context. (Opposition to PLN Demurrer to Def Answer (“Opp.”) at 4:14-22.) The Court disagrees. The specificity requirement articulated in *FPI Development* derives from the general pleading principle that ultimate facts, rather than legal conclusions, must be alleged, a principle also expressed in *Quantification*

Settlement Agreement Cases (2011) 201 Cal.App.4th 758, a published Court of Appeal decision arising in a different procedural context. (*South Shore Land Co.*, *supra*, 226 Cal.App.2d 725, 732 [the determination whether an answer states a defense is governed by the same principles applicable to determining if a complaint states a cause of action].) Applying that principle to affirmative defenses through the equivalence framework established by *South Shore* is not an extension of *FPI Development* beyond its holding; it is an application of the underlying pleading doctrine that both *FPI Development* and *Quantification Settlement Agreement Cases* express. Defendant's reliance on a trial court opinion (*Serfas Serv. Station, Inc. v. TLC Props., Inc.*, 2024 Cal. Super. LEXIS 8521) for the proposition that "FPI Development is not persuasive in the context of a demurrer to an answer" (Opp. at 4:14-22) is unavailing, as such decisions are not binding authority on which this court may rely. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455.)

II. Factual and Procedural Background

This case arises out of a dispute between parties to a sale of an allegedly defective vehicle.

Plaintiff Rachyll Dempsey ("Ms. Dempsey") purchased a new 2022 Jeep Wrangler ("the Vehicle") from Defendant FCA US LLC ("FCA") on August 13, 2022. (Complaint ("Compl.") at 2:25.) Upon purchasing the Vehicle, Ms. Dempsey received written, express, and implied warranties from FCA promising that, *inter alia*, the Vehicle and its components would be free from defects and fit for the ordinary purposes for which it was intended, the Vehicle would conform to promises and affirmations of fact made, and FCA "would perform any repairs, alignments, adjustments, and/or replacements of any parts necessary to ensure that the Vehicle was free from any defects in material and workmanship." (*Id.* at 2:27-3:6.) The Vehicle's warranties included a three-year or 36,000-mile basic warranty and a five-year or 60,000-mile powertrain warranty. (*Id.* at 3:7-8.)

Ms. Dempsey alleges that the Vehicle sold to her by FCA had serious defects and nonconformities to warranty and subsequently developed other serious defects and nonconformities, including, but not limited to defects relating to the steering and transmission systems. (Compl. at 3:9-11.)

Ms. Dempsey alleges that she performed all conditions required of her under the contract and warranties except insofar as she was unable to do so as a result of acts or omissions of FCA. (Compl. at 3:22-25.)

Ms. Dempsey brought the Vehicle to FCA's authorized service and repair facilities "on numerous occasions" to report "malfunctions, misadjustments, and/or nonconformities existent with the Vehicle" so that Defendant might repair the alleged nonconformities. (Compl. at 3:26-4:6.) Specifically, she identified Michael Stead's Auto Depot as an authorized facility to which she delivered the vehicle on "multiple occasions" for repairs to the steering and transmission systems. (*Id.* at 10:2-8.)

Ms. Dempsey identifies the following problems with the Vehicle's steering: "vibration felt in steering wheel when going over bumps or uneven road at freeway speeds, and vehicle shak[ing] abnormally at highway speeds in the front end; requiring the replacement of the following parts: steering damper;

and/or any other similar concerns identified in the repair history...” (Compl. at 5:25-28.)

Ms. Dempsey identifies the following problems with the Vehicle’s transmission: “clutch has a hard shift into 2nd gear; requiring the replacement of the following parts: clutch release bearing; clutch pressure plate kit; engine flywheel; which require the following recalls to be performed: 19A and/or any other similar concerns identified in the repair history...” (Compl. at 6:1-6.)

Ms. Dempsey alleges that each time she brought the Vehicle to FCA’s authorized service and repair facilities, she was told they could, would, and did repair the Vehicle such that it would conform to the applicable warranties. (*Id.* at 4:7-11.) Despite these assurances, Ms. Dempsey alleges that the defects, malfunctions, maladjustments, and/or nonconformities exist even though “a reasonable number of attempts to repair was given.” (*Id.* at 4:11-13.)

Ms. Dempsey, in her Complaint, revokes acceptance of the sales contract. (Compl. at 3:12.)

Ms. Dempsey alleges that FCA’s failure to perform the proper repairs, parts replacements, and/or adjustments to conform the Vehicle to the express warranties, and failure to do so in good and workmanlike manner, constitutes a breach of FCA’s obligations under the Song-Beverly Consumer Warranty Act (“Song-Beverly Act”). (Compl. at 6:15-23.)

More than 30 days have passed since delivery of the Vehicle to Michael Stead’s Auto Depot and Ms. Dempsey alleges Defendant and Michael Stead’s Auto Depot “have failed to tender the Vehicle back to Plaintiff in conformance with its warranties.” (Compl. at 10:6-8.)

Ms. Dempsey served FCA with a pre-litigation demand letter by certified mail on October 27, 2025. (Compl. at 5:2-5.) More than 30 days passed without FCA providing restitution pursuant to the Song-Beverly Act; this alleged inaction prompted the instant suit, which was filed December 11, 2025. (*Ibid.*)

Ms. Dempsey alleges that FCA’s failure to refund the price paid for the Vehicle or to replace the Vehicle “was intentional and justifies an award of a Civil Penalty in an amount not to exceed two times Plaintiff’s actual damages.” (Compl. at 6:27-7:2.)

III. Meet and Confer

It is the responsibility of the demurring party to meet and confer with the opposing party at least five days prior to the date the responsive pleading is due. (Code Civ. Proc., § 430.41(a)(2).)

Defendant filed its Answer in the instant case on January 16, 2026. On January 19, 2026, Plaintiff’s counsel Astrid Souto emailed Defense counsel requesting availability for a phone call to discuss the grounds for Plaintiff’s Demurrer, which Ms. Souto outlined in the email. (Dem., Exhibit B.) Defense counsel Lauren Petre responded January 20, 2026, informing Ms. Souto that Defendant would voluntarily withdraw its contributory negligence, estoppel, waiver, and unclean hands defenses. (*Id.*, Exhibit C.) Ms. Souto replied the same day, giving Defendant a January 26, 2026 deadline to file an amended Answer. (*Ibid.*) Defendant did not file an amended Answer by the deadline or thereafter. (*Id.* at 18:20-22.) Plaintiff filed the instant Demurrer to Defendant’s Answer on January 28, 2026.

California Code of Civil Procedure section 430.41 requires that a “good faith attempt to meet and confer was made.” Although the parties did not meet and confer by phone, in person, or by video conference before the instant motion was filed, the Court finds that Plaintiff met her statutory burden and proceeds with its ruling accordingly.

IV. Analysis

Second Affirmative Defense

This affirmative defense alleges, “Plaintiff’s claims are barred by the applicable statute of limitations, including but not limited to California Code of Civil Procedure §§ 337, 338, 338.1, et seq., and Commercial Code § 2725, etc.”

To properly plead a statute of limitations defense a party must either allege facts showing that the action is time barred and allege the lateness of the action as a defense, or plead the specific section and subdivision. (Code Civ. Proc., § 458; *Martin v. Van Bergen* (2012) 209 Cal.App.4th 84, 91.) “It is necessary for defendant who pleads the statute of limitations to specify the applicable section, and, *if such section is divided into subdivisions, to specify the particular subdivision or subdivisions thereof. If he fails to do so the plea is insufficient.*” (*Brown v. World Church* (1969) 272 Cal.App.2d 684, 691 (emphasis added).)

Here, FCA alleges Ms. Dempsey’s claims are time barred, however Code of Civil Procedure sections 337 and 338 and Commercial Code 2725 all have multiple subdivisions, and FCA fails to specify to which subdivision it refers. Making things even more uncertain, Code of Civil Procedure section 338.1 is entirely inapplicable as it applies to “[a]ction[s] for civil penalties or punitive damages related to hazardous substances.” (Code Civ. Proc., § 338.1.)

Moreover, even if the filing date and purchase date appearing on the face of the Complaint were sufficient to raise a limitations bar, the second affirmative defense fails to contend with Plaintiff’s tolling allegations, which allege equitable tolling, the discovery rule, fraudulent concealment, the repair rule, and class action tolling. (Compl. at 5:6-11.) A statute of limitations defense that does not address Plaintiff’s pleaded tolling theories does not give fair notice of the nature and extent of the defense. (*Ludgate Ins. Co., supra*, 82 Cal.App.4th at 608.)

Accordingly, the Demurrer to the second affirmative defense is **SUSTAINED WITH LEAVE TO AMEND.**

Third Affirmative Defense

This affirmative defense alleges, “[i]f Plaintiff sustained any damages as alleged in the Complaint, such damages were proximately caused and contributed to by Plaintiff by failing to act in a manner ordinarily expected of a reasonably prudent person in the conduct of their affairs and business. The contributory negligence and fault of Plaintiff eliminates or diminishes any recovery sought in Plaintiff’s Complaint.”

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co., supra*, 228 Cal.App.3d at 725.) Although Ms. Dempsey alleges she conducted herself in accordance

with all required duties under the contract and warranties, her Complaint does not otherwise put her conduct at issue. (Compl. at 3:22-25.) A comparative fault defense is not merely a denial of the allegation that Plaintiff adequately performed, it introduces the distinct factual claim that Plaintiff was negligent, and her negligence contributed to her damages. This defense is not responsive to any essential allegation contained in Plaintiff's Complaint. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Because Plaintiff's own negligent conduct is not put at issue by the Complaint, this affirmative defense qualifies as new matter and FCA must plead ultimate facts supporting this defense; terse legal conclusions are insufficient. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the third affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Fourth Affirmative Defense

This affirmative defense alleges, "[i]f Plaintiff sustained any damages as alleged in the Complaint, such damages were proximately caused and contributed to by persons and/or parties other than Defendant by such persons or parties' failure to conduct themselves in a manner ordinarily expected of reasonably prudent persons in the conduct of their affairs and business. The contributory negligence and fault of persons and/or parties other than Defendant eliminates or diminishes any recovery sought in Plaintiff's Complaint."

Defendant in its Opposition states that it has agreed to withdraw its contributory negligence defense; Plaintiff's demurrer with respect to Defendant's fourth affirmative defense is, accordingly, **MOOT**. (Opp. at 2:11-13.)

Fifth Affirmative Defense

This affirmative defense alleges, "[i]f Plaintiff sustained any damages as alleged in the Complaint, such damages were proximately caused and contributed to by Plaintiff in failing to mitigate Plaintiff's damages. Plaintiff's failure to mitigate damages eliminates or diminishes any recovery herein."

This defense as alleged is uncertain. (Code Civ. Proc., § 430.20(b).) Plaintiff's complaint alleges that she took the Vehicle to FCA's authorized service and repair facilities "on numerous occasions" to report "malfunctions, misadjustments, and/or nonconformities existent with the Vehicle" so that Defendant might repair the alleged nonconformities. (Compl. at 3:26-4:6.) Specifically, she identified Michael Stead's Auto Depot as an authorized facility to which she delivered the vehicle on "multiple occasions" for repairs to the steering and transmission systems. (*Id.* at 10:2-8.) To this end, she alleged she fulfilled all duties required under contract and warranties. (*Id.* at 3:22-25.)

To the extent that Defendant's fifth affirmative defense contends only that Ms. Dempsey failed to take those steps, it may function as a traverse of these allegations. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) However, the defense, as pled, does not identify what Ms. Dempsey allegedly failed to do, when she failed to do it, or how the failure contributed to her damages. Ms. Dempsey cannot reasonably determine from the face of this defense whether FCA contends she failed to bring the Vehicle in for repairs at all, failed to act promptly, failed to seek alternative relief,

or something else entirely. The defense is therefore uncertain within the meaning of Code of Civil Procedure section 430.20(b).

To the extent that the defense introduces factual theories not at issue in Plaintiff's Complaint, it constitutes new matter and must be pled with ultimate facts. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725; *FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the fifth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Sixth Affirmative Defense

This affirmative defense alleges, "[t]o the extent that Defendant has or will incur any damages by reason of Plaintiff's conduct arising out of this case, then Defendant has the right to offset any amounts owed by Plaintiff to Defendant against monies allegedly owed by Defendant to Plaintiff."

This defense has two independent defects.

First, it constitutes a terse legal conclusion. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384; *Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-813.) FCA alleges no facts in support of the conclusion that it is entitled to any offset. FCA does not identify what conduct of Ms. Dempsey caused it damages, what those damages are, or what amounts Ms. Dempsey allegedly owes to FCA. Without these facts the defense cannot be fairly evaluated or responded to.

Second, the defense is entirely conditional and hypothetical. FCA does not assert that it has actually incurred damages as a result of Ms. Dempsey's conduct; it asserts only that it may do so in the future. A defense premised on damages FCA has not alleged and may never sustain does not give Ms. Dempsey fair notice of any actual claim against her. (*Ludgate Ins. Co.*, *supra*, 82 Cal.App.4th at 608.)

Accordingly, the Demurrer to the sixth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Seventh Affirmative Defense

This affirmative defense alleges, "Plaintiff's cause of action for breach of express warranty and incidental and consequential damages is barred by the express disclaimers and limitations of liability contained in the alleged express warranties."

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Plaintiff's Complaint alleges generally that the Vehicle came with written, express, and implied warranties from FCA (Compl. at 2:27-3:8.) However, though Plaintiff alleges that these warranties were breached by the Defendant, she does not allege the specific terms, limitations, or disclaimer provisions of the warranties in her Complaint. FCA's seventh affirmative defense rests entirely on specific contractual language that does not appear in the Complaint and is not before the Court. Because a demurrer reaches only to the contents of the pleading and matters subject to judicial notice (*South Shore Land Co.*, *supra*, 226 Cal.App.2d 725, 732), and the warranty

documents are neither, the defense as pled asks the Court to find Plaintiff's claims barred by contract language that cannot be evaluated on demurrer.

As new matter, the seventh affirmative defense must be pled with ultimate facts identifying the specific disclaimer language relied upon, where it appears in the warranty documents, and how it applies to bar Plaintiff's particular claims. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725; *FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.) The defense as pled does not do so.

Accordingly, the Demurrer to the seventh affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Eighth Affirmative Defense

This affirmative defense alleges, "[e]ach and every cause of action based upon breach of implied warranty is barred by virtue of Civil Code § 1791.1(c)."

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Plaintiff's Complaint does not put the duration of the implied warranty at issue. FCA must therefore plead ultimate facts establishing that the implied warranty of merchantability expired before Ms. Dempsey's claims accrued. The defense as pled does not do so. Moreover, the defense as pled works against FCA on the face of the Complaint. Plaintiff alleges that the Vehicle was sold with a three-year or 36,000-mile basic warranty and a five-year or 60,000-mile powertrain warranty. (Compl. at 3:7-8.) Under Civil Code section 1791.1(c), the implied warranty runs coextensively with the express warranty where express warranty duration is reasonable. FCA does not allege any other basis on which the implied warranty would have expired prior to the accrual of Ms. Dempsey's claims.

Accordingly, the Demurrer to the eighth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Ninth Affirmative Defense

This affirmative defense alleges, "Plaintiff has engaged in conduct and activity sufficient to estop Plaintiff from asserting all or any part of the claims asserted or relief sought in Plaintiff's Complaint."

Defendant in its Opposition states that it has agreed to withdraw its estoppel defense; Plaintiff's demurrer with respect to Defendant's ninth affirmative defense is, accordingly, **MOOT**. (Opposition to PLN Demurrer to Def Answer ("Opp.") at 2:11-13.)

Tenth Affirmative Defense

This affirmative defense alleges, "Plaintiff has engaged in conduct and activities sufficient to constitute a waiver of any alleged breach of contract, breach of warranty, negligence, or any other conduct as set forth in Plaintiff's Complaint."

Defendant in its Opposition states that it has agreed to withdraw its waiver defense; Plaintiff's demurrer with respect to Defendant's tenth affirmative defense is, accordingly, **MOOT**. (Opposition

to PLN Demurrer to Def Answer ("Opp.") at 2:11-13.)

Eleventh Affirmative Defense

This affirmative defense alleges, "Plaintiff waited an unreasonable period of time to complain of the alleged acts or omissions at issue in Plaintiff's Complaint so as to prejudice Defendant. Plaintiff is, therefore, guilty of laches and is barred from recovery."

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) The elements of laches are (1) delay in asserting a right or a claim; (2) the delay was not reasonable or excusable; and (3) prejudice to the party against whom laches is asserted. (*R & J Sheet Metal, Inc. v. W.E. O'Neil Construction Co. of California* (2025) 111 Cal.App.5th 878, 901.) The eleventh affirmative defense fails to plead these elements, and none are responsive to any essential allegations in the Complaint. FCA must allege ultimate facts pleading the elements of laches, and it did not do so. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.)

FCA asserts only that Ms. Dempsey waited an unreasonable period of time and that this prejudiced FCA. These are bare legal conclusions that do not identify what period of delay FCA contends was unreasonable under the circumstances, or how FCA was specifically prejudiced. Such a terse legal conclusion does not give Ms. Dempsey fair notice of the nature and extent of the defense. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813; *Ludgate Ins. Co.*, *supra*, 82 Cal.App.4th at 608.)

Accordingly, the Demurrer to the eleventh affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Twelfth Affirmative Defense

This affirmative defense alleges, "Plaintiff's Complaint, and the claims and relief sought therein, is barred by the doctrine of unclean hands and/or bad faith."

Defendant in its Opposition states that it has agreed to withdraw its unclean hands defense; Plaintiff's demurrer with respect to Defendant's twelfth affirmative defense is, accordingly, **MOOT**. (Opposition to PLN Demurrer to Def Answer ("Opp.") at 2:11-13.)

Thirteenth Affirmative Defense

This affirmative defense alleges, "[a]ny failure to perform the obligations as described in the Complaint resulted from Plaintiff's failure to perform as required by the contract and/or warranty. Performance of Plaintiff's obligations was a condition precedent to the performance of Defendant's obligations."

Where a defense sets forth facts showing some essential allegation of the complaint is not true, such facts are not new matter, but only a traverse." (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) This defense is traverse; it is responsive to paragraph 15 of Plaintiff's Complaint, wherein she

contends that she performed all conditions required of her under the contract and warranties apart from those excused by acts or omissions of Defendant's. (Compl. at 3:22-25.) Accordingly, this defense need not be specifically alleged. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.)

Accordingly, the Demurrer to the thirteenth affirmative defense is **OVERRULED**.

Fourteenth Affirmative Defense

This affirmative defense alleges, "Plaintiff's causes of action arising out of the Song-Beverly Consumer Warranty Act are barred to the extent Plaintiff did not purchase the subject vehicle within the State of California."

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Plaintiff's Complaint does not allege where she purchased the Vehicle, thus this defense is not responsive to any essential allegations in the Complaint. Because it is new matter, FCA must plead ultimate facts establishing that Ms. Dempsey did not purchase the Vehicle in California. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the fourteenth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Fifteenth Affirmative Defense

This affirmative defense alleges, "Plaintiff is barred from recovery by virtue of Civil Code § 1794.3 since the claimed defect or nonconformity was caused by the unauthorized or unreasonable use of the vehicle following sale and/or a failure to properly maintain the vehicle."

Civil Code section 1794.3 provides that a manufacturer or seller is not liable under the Song-Beverly Act where a nonconformity is caused by unauthorized or unreasonable use of the consumer good following the sale. (Cal Civ Code § 1794.3) This affirmative defense has statutory grounding and is not legally unavailable on its face, however it is new matter.

Plaintiff's Complaint does not put her use or maintenance of the Vehicle at issue; it alleges only that the Vehicle was delivered with defects and that FCA failed to repair them after a reasonable number of attempts. (Compl. at 3:9-11, 3:26-4:6, 10:2-8.) Because Plaintiff's use and maintenance of the Vehicle are not responsive to any essential allegation of the Complaint, FCA must plead ultimate facts establishing this defense. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the fifteenth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Sixteenth Affirmative Defense

This affirmative defense alleges, "[t]he vehicle was not defective or in an unmerchantable condition

at any time when it left the possession, custody, and control of the manufacturer. Any damage to the subject automobile was caused and created by changes and alterations made to the vehicle, subsequent to the vehicle's manufacture and/or sale, by persons other than the manufacturer or any of its agents, servants, or employees; thus, barring Plaintiff's recovery."

This defense contains two distinct theories. The first, that the Vehicle was not defective when it left FCA's possession, functions as a traverse of Plaintiff's allegation that the Vehicle was delivered with serious defects and nonconformities. (Compl. at 3:9-11.) As a traverse, this theory does not require additional facts beyond those already in the Complaint. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.)

The second theory, however, that post-sale alterations by third parties caused damage to the Vehicle, constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Plaintiff's Complaint does not allege any damage, changes, or alterations to the vehicle after its delivery, apart from the work performed by FCA's authorized service and repair facilities. (Compl. at 3:26-4:6.) Because post-sale alteration by third parties is not responsive to any essential allegation of the Complaint, FCA must plead ultimate facts establishing this theory, including identifying what alterations were made, by whom, and how they caused the specific nonconformities alleged. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the sixteenth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Seventeenth Affirmative Defense

This affirmative defense alleges, "[t]he repair process to Plaintiff's vehicle was appropriate and proper and is believed to have been done with the consent of the Plaintiff."

This defense does not constitute a defense to any claim alleged in the Complaint. (Code Civ. Proc., § 430.20(a).) Plaintiff does not allege that the repair process was improper, inappropriate, or non-consensual. Her claim rests on FCA's failure to conform the Vehicle to the applicable warranties after a reasonable number of repair attempts, not on the manner or procedural propriety of the repair process. (Compl. at 3:9-11, 3:26-4:6, 10:2-8.) The propriety of the repair process and Plaintiff's consent to repairs are therefore not responsive to any essential allegation of the Complaint and do not constitute a defense to claims alleged.

Accordingly, the Demurrer to the seventeenth affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Eighteenth Affirmative Defense

This affirmative defense alleges, "[a]t all relevant times, Defendant acted in conformity with industry standards based upon the state of knowledge existing at the various time periods alleged in the Complaint, and therefore Plaintiff is barred from any recovery."

This defense does not constitute a defense to any claim alleged in the Complaint. (Code Civ. Proc., § 430.20(a).) Plaintiff does not allege that FCA failed to comply with industry standards. Further, FCA's compliance with industry standards would not bar recovery on the claims as pled.

Second, to the extent the defense introduces the affirmative factual claim that FCA complied with specific industry standards, it constitutes new matter that must be pled with ultimate facts. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725; *FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the eighteenth affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Nineteenth Affirmative Defense

This affirmative defense alleges, "Plaintiff is precluded from any recovery pursuant to the Song-Beverly Consumer Warranty Act because Plaintiff failed and refused to provide a reasonable opportunity to repair."

This defense is traverse of Plaintiff's allegation that she delivered the Vehicle to FCA's authorized service and repair facilities on numerous occasions and performed all conditions required of her under contract and warranties. (Compl. at 3:22-25, 3:26-4:6.) As traverse, no additional facts are required. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.)

Accordingly, the Demurrer to the nineteenth affirmative defense is **OVERRULED**.

Twentieth Affirmative Defense

This affirmative defense alleges, "Plaintiff's Complaint fails to state sufficient facts to warrant the imposition of civil penalties because it was believed that replacement or repurchase of the subject vehicle was not appropriate under the circumstances then known."

This defense fails on two independent grounds.

First, the defense is uncertain. Code Civ. Proc., § 430.20(b).) It simultaneously asserts a challenge to the sufficiency of the Complaint's civil penalty allegations and a merits defense that replacement or repurchase was not appropriate under the circumstances then known. These are distinct theories and the defense does not make clear which FCA is asserting, leaving Ms. Dempsey without fair notice of what she must respond to. (*Ludgate Ins. Co.*, *supra*, 82 Cal.App.4th at 608.)

Second, to the extent that FCA challenges the sufficiency of the Complaint's civil penalty allegations, that is not a proper affirmative defense. A challenge to the sufficiency of a pleading must be raised by demurrer or motion to strike, not by affirmative defense.

Accordingly, the Demurrer to the twentieth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Twenty-First Affirmative Defense

This affirmative defense alleges, “[a]ny cause of action alleged in Plaintiff’s Complaint seeking civil penalties is barred by the statute of limitations contained in the California Code of Civil Procedure, specifically § 340.”

This defense fails on two independent grounds.

First, Code of Civil Procedure section 340 has no viable application to Song-Beverly civil penalties. Civil penalties under the Song-Beverly Act are not an independent cause of action with their own limitations period; they are parasitic on the underlying warranty claim and are governed by the same limitations period. FCA cannot invoke a separate one-year limitations period for a claim that accrues and expires with the underlying warranty claims. (Civ. Code, § 1794(c).)

Second, even if Code of Civil Procedure section 340 had some application here, FCA fails to specify which subdivision it relies upon, as required by Code of Civil Procedure section 458. Section 340 contains multiple subdivisions covering distinct subject matter, and FCA’s bare citation without identifying the applicable subdivision does not give fair notice of the defense and is insufficient. (*Brown, supra*, 272 Cal.App.2d at 691.)

Because there is no viable limitations period applicable to Song-Beverly civil penalties independent of the underlying warranty claim, no amended version of this defense could cure these deficiencies.

Accordingly, the Demurrer to the twenty-first affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Twenty-Second Affirmative Defense

This affirmative defense alleges, “FCA US LLC contends that the Complaint fails to state facts sufficient to warrant the imposition of civil penalties because Plaintiff failed to serve upon FCA US LLC written notice requesting that FCA US LLC comply with paragraph (2) of subdivision (d) of Civil Code § 1793.2 as required by Civil Code § 1794(e)(3).”

This defense constitutes new matter. Plaintiff’s Complaint does not allege the Tanner Consumer Protection Act presumption under Civil Code section 1793.22 was triggered, and the applicability of the notice requirement in Civil Code section 1794(e)(3) is therefore not responsive to any essential allegation of the complaint. (*FPI Development, Inc., supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases, supra*, 201 Cal.App.4th at 812-813.)

Civil Code section 1794(e)(3) provides that after the occurrence of the events giving rise to the presumption established in Civil Code section 1793.22(b), a buyer may serve upon the manufacturer written notice requesting compliance with Civil Code section 1793.2(d)(2), and that if the buyer fails to serve such notice, the manufacturer shall not be liable for a civil penalty under that subdivision.

By its plain terms, the written notice requirement of Civil Code section 1794(e)(3) is triggered only where the events giving rise to the Tanner Consumer Protection Act presumption under Civil Code

section 1793.22 have occurred. That presumption requires the triggering events to occur within 18 months from delivery or 18,000 miles on the odometer, whichever occurs first.

Plaintiff's Complaint does not allege that the Vehicle's nonconformities or repair history satisfy the conditions for the Tanner presumption within that timeframe. Accordingly, the applicability of Civil Code section 1794(e)(3) to this action is not established on the face of the Complaint, and FCA must plead ultimate facts establishing that the Tanner presumption was triggered and that the notice requirement therefore applies. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the twenty-second affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Twenty-Third Affirmative Defense

This affirmative defense alleges, "Plaintiff's demands for civil penalties in the Complaint under the Song-Beverly Warranty Act are barred by the failure of Plaintiff to comply with the applicable statutory requirements under California Code of Civil Procedure section 871.20 et seq. before filing this action."

This defense constitutes new matter. Code of Civil Procedure section 871.20 applies only to actions brought against a manufacturer who has elected under Code of Civil Procedure section 871.29 to proceed under that chapter. FCA pleads no facts establishing that it made the election required to trigger the chapter's applicability. Without that predicate fact, the statutory requirements FCA invokes do not apply to this action. FCA must plead ultimate facts establishing that it made the required election under Code of Civil Procedure section 871.29. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the twenty-third affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Twenty-Fourth Affirmative Defense

This affirmative defense alleges, "[i]mposition of a civil penalty in this case would violate Defendant's rights under the Fourteenth Amendment to the United States Constitution and/or Article I of the California Constitution."

FCA does not identify which provisions of Article I of the California Constitution it invokes, what constitutional right is implicated, or how imposition of a civil penalty in this specific case would violate it. This defense constitutes a terse legal conclusion devoid of factual content that does not provide Ms. Dempsey with fair notice of the constitutional theory being asserted. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813; *Ludgate Ins. Co.*, *supra*, 82 Cal.App.4th at 608.)

Accordingly, the Demurrer to the twenty-fourth affirmative defense is **SUSTAINED WITH LEAVE TO**

AMEND.

Twenty-Fifth Affirmative Defense

This affirmative defense alleges, “FCA US LLC presently has insufficient knowledge or information on which to form a belief as to whether it may have additional, as yet unstated, defenses available. FCA US LLC reserves the right to assert additional defenses in the event that they would be appropriate.”

The twenty-fifth affirmative defense is not a cognizable affirmative defense. Code of Civil Procedure section 431.30(b) provides that an answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant, and (2) a statement of any new matter constituting a defense. A reservation of unidentified future defenses is neither a denial nor a statement of new matter. It does not allege any facts, raise any legal theory, or respond to any allegation in the Complaint. It therefore does not constitute a defense within the meaning of Code of Civil Procedure section 431.30(b). Moreover, Code of Civil Procedure section 472 already provides the mechanism by which a party may seek leave to amend a pleading to add a defense. (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.)

Accordingly, the Demurrer to the twenty-fifth affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

For the Foregoing reasons, the Court **SUSTAINS WITH LEAVE TO AMEND** the Demurrer to the second, third, fifth, sixth, seventh, eighth, eleventh, fourteenth, fifteenth, sixteenth, twentieth, twenty-second, twenty-third, and twenty-fourth affirmative defenses; the Court **SUSTAINS WITHOUT LEAVE TO AMEND** the Demurrer to the seventeenth, eighteenth, twenty-first, and twenty-fifth affirmative defenses; the Court **OVERRULES** the Demurrer to the thirteenth and nineteenth affirmative defenses; and the Court finds the Demurrer **MOOT** as to the fourth, ninth, tenth, and twelfth affirmative defenses.

Discovery Law & Motion

21. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

***HEARING ON MOTION FOR DISCOVERY ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AGAINST GWEN BERTOLAMI LYSONS**

FILED BY: MIMS, LAURIE

TENTATIVE RULING:

Summary

This Tentative Ruling applies to Lines 21 and 22. Before the Court are two discovery motions filed by Plaintiffs Laurie Mims and Derek Mims (“Plaintiffs”) against Defendant Gwen Bertolami Lyons (“Defendant”):

1. Motion for Order Deeming Request for Admissions Admitted against Defendant, filed on